

## Opinion of the Court

tools may suffice to protect the constitutional rights of individual criminal defendants, the interests that underlie Presidential immunity seek to protect not the President himself, but the institution of the Presidency.<sup>3</sup>

## IV

## A

Trump asserts a far broader immunity than the limited one we have recognized. He contends that the indictment must be dismissed because the Impeachment Judgment Clause requires that impeachment and Senate conviction precede a President's criminal prosecution. Brief for Petitioner 16.

The text of the Clause provides little support for such an absolute immunity. It states that an impeachment judgment “shall not extend further than to removal from Office, and disqualification to hold and enjoy any Office of honor, Trust or Profit under the United States.” Art. I, §3, cl. 7. It then specifies that “the Party convicted shall *nevertheless* be liable and subject to Indictment, Trial, Judgment and

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<sup>3</sup> JUSTICE BARRETT disagrees, arguing that in a bribery prosecution, for instance, excluding “any mention” of the official act associated with the bribe “would hamstring the prosecution.” *Post*, at 656 (opinion concurring in part); cf. *post*, at 681–682 (SOTOMAYOR, J., dissenting). But of course the prosecutor may point to the public record to show the fact that the President performed the official act. And the prosecutor may admit evidence of what the President allegedly demanded, received, accepted, or agreed to receive or accept in return for being influenced in the performance of the act. See 18 U. S. C. §201(b)(2). What the prosecutor may not do, however, is admit testimony or private records of the President or his advisers probing the official act itself. Allowing that sort of evidence would invite the jury to inspect the President's motivations for his official actions and to second-guess their propriety. As we have explained, such inspection would be “highly intrusive” and would “‘seriously cripple’” the President's exercise of his official duties. *Fitzgerald*, 457 U. S., at 745, 756 (quoting *Spalding v. Vilas*, 161 U. S. 483, 498 (1896)); see *supra*, at 618–619. And such second-guessing would “threaten the independence or effectiveness of the Executive.” *Trump v. Vance*, 591 U. S. 786, 805 (2020).